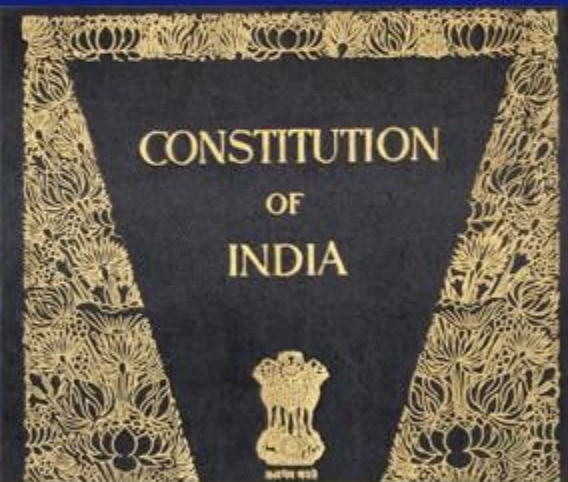


INDIAN POLITY



MODULE - 45

FUNDAMENTAL RIGHTS

- IMPORTANCE OF ARTICLE 31C
- CRITICISM OF FR

EXCEPTIONS TO
FUNDAMENTAL RIGHTS

SAVING OF LAWS GIVING EFFECT
TO CERTAIN DIRECTIVE PRINCIPLES

"Where article 31-C comes in, article 14 goes out"

*What does this quote mean?
What is its relevance?*

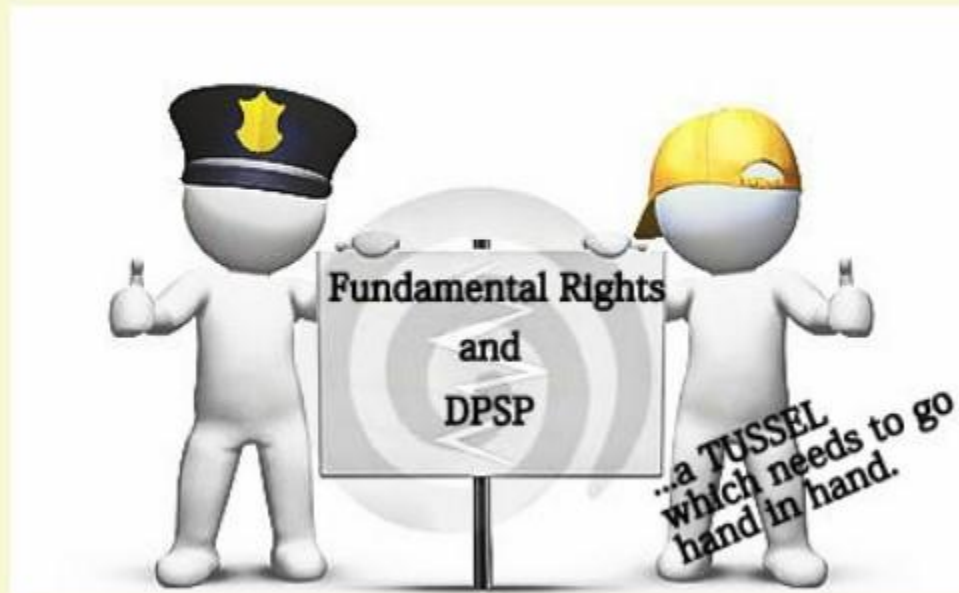
Most importantly, how does it connect FR and DPSP?



INDIAN POLITY

EXCEPTIONS TO FUNDAMENTAL RIGHTS

BACKGROUND OF ARTICLE 31C



IMPORTANT POINT

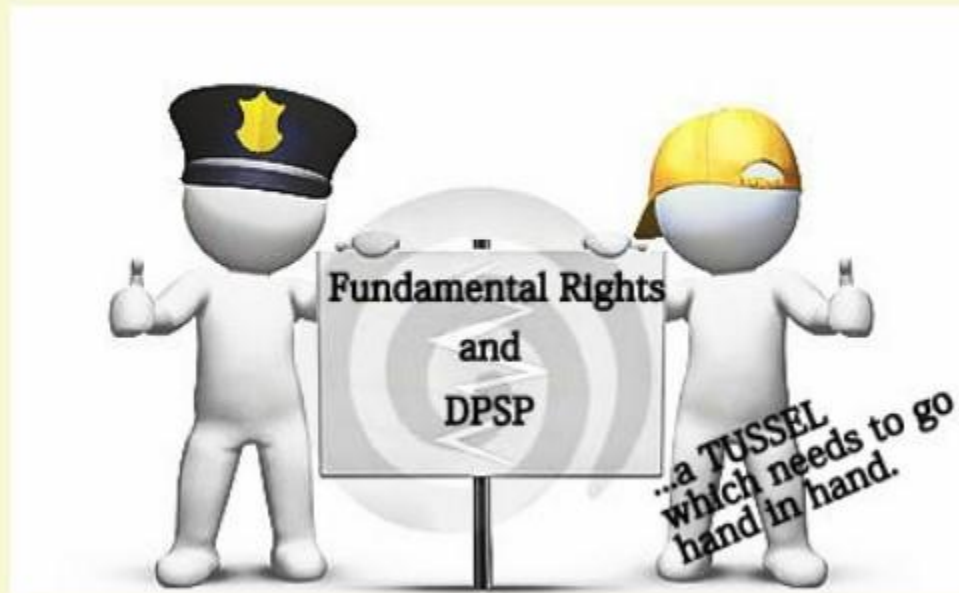
1 Article 31C was not originally in the Constitution. It was added by the **25th Amendment Act in 1971** as a result of complex debates and differing interpretations regarding amendment of Part III of the Constitution of India.

2 It provides for **validation of laws which are made in order to implement the DPSP {article 39(b) or (c)} in Part IV of the Constitution even if they are in contravention with Fundamental rights i.e. Article 14 and 19.**

INDIAN POLITY

EXCEPTIONS TO FUNDAMENTAL RIGHTS

BACKGROUND OF ARTICLE 31C



3 This amendment was challenged before the Supreme Court in the famous Khesavananda Bharati case in 1973.

4 The Supreme Court's 7 judge bench upheld the aforesaid provision recognising that Directive Principles of State Policy are vital for the inclusive and robust growth and also social justice and equality,

5 Henceforth to implement the government can't be tied in the clutches of article 14&19 and might have to sometimes make laws which violates equality in order to attain the objectives of DPSP .

EXCEPTIONS TO FUNDAMENTAL RIGHTS

BACKGROUND OF ARTICLE 31C



Supreme Court realised this reality and ordered accordingly BUT MADE A SMALL CHANGE IN ARTICLE 31C. What was that?

6 Supreme Court rightly recognised that Article 14 and 19 might come in the way to ensure
(a) the **equitable distribution** of material resources of the community for a common good
(b) **prevention of concentration of wealth** and production.

7 Therefore philosophically our constitution being liberal in character(article-14&19) had elements of social justice as well (article 39) which was a unique experiment and much needed one for a country like India

EXCEPTIONS TO FUNDAMENTAL RIGHTS

SAVING OF LAWS GIVING EFFECT TO CERTAIN DIRECTIVE PRINCIPLES



- 1 Article 31C, as inserted by the 25th Amendment Act of 1971, contained the following two provisions:
 - a) No law that seeks to implement the socialistic directive principles specified in Article 39(b) or (c) **shall be void on the ground of contravention of the fundamental rights** conferred by Article 14 (equality before law and equal protection of laws) or Article 19 (protection of six rights in respect of speech, assembly, movement, etc.)
 - b) No law containing a declaration that it is for giving effect to such policy **shall be questioned in any court** on the ground that it does not give effect to such a policy

EXCEPTIONS TO FUNDAMENTAL RIGHTS

SAVING OF LAWS GIVING EFFECT
TO CERTAIN DIRECTIVE PRINCIPLES



***KB case: “Judicial Review” is a
basic feature of the Constitution***

2 In the Kesavananda Bharati case (1973), the Supreme Court declared the above **second provision of Article 31C as unconstitutional and invalid** on the ground that judicial review is a basic feature of the Constitution and hence, cannot be taken away.

3 However, the above first provision of article 31C was held to be constitutional and valid.

EXCEPTIONS TO FUNDAMENTAL RIGHTS

SAVING OF LAWS GIVING EFFECT TO CERTAIN DIRECTIVE PRINCIPLES



The “mini-constitution” as created by Indira Gandhi gave unlimited amending powers to Parliament

4 The 42nd Amendment Act (1976) extended the scope of the above first provision of article 31C by including within its **protection any law to implement any of the Directive Principles specified in Part IV of the Constitution and not merely in Article 39 (b) or (c).**

5 However, this extension was declared as unconstitutional and invalid by the Supreme Court in the **Minerva Mills case (1980).**

EXCEPTIONS TO FUNDAMENTAL RIGHTS

SAVING OF LAWS GIVING EFFECT TO CERTAIN DIRECTIVE PRINCIPLES

To put in a quick summary,

- Article 31C is valid in giving effect to certain directive principles of Article 39 (b) or (c).
- However, this doesn't give any overriding powers to the Parliament so as to give primacy entirely to DPSP over FR.
- Any law so made can be subject to Judicial review as per Doctrine of Basic Structure. [Keshavananda Bharati case]
- DPSP and FR are like two wheels of a chariot, one no less than the other. Balance between both is an essential aspect of the Indian Constitution itself. [Minerva Mills case]

CRITICISM OF FUNDAMENTAL RIGHTS

The Fundamental Rights enshrined in Part III of the Constitution have met with a wide and varied criticism. The arguments of the critics are:

POINT NO. 1

EXCESSIVE LIMITATIONS



1 They are subjected to innumerable exceptions, restrictions, qualifications and explanations. Hence, the critics remarked that the Constitution grants Fundamental Rights with one hand and takes them away with the other.

2 Jaspat Roy Kapoor went to the extent of saying that the chapter dealing with the Fundamental Rights should be renamed as "Limitations on Fundamental Rights" or "Fundamental Rights and Limitations Thereon".

CRITICISM OF FUNDAMENTAL RIGHTS

POINT NO. 2

NO SOCIAL & ECONOMIC RIGHTS



- 1 The list is not comprehensive as it **mainly consists of political rights.**
- 2 It makes no provision for important social and economic rights like right to social security, right to work, right to employment, right to rest and leisure and so on.
- 3 These rights are made available to the citizens of advanced democratic countries.
- 4 Also, the socialistic constitutions of erstwhile USSR or China provided for such rights.

CRITICISM OF FUNDAMENTAL RIGHTS

POINT NO. 3

NO CLARITY



- 1 They are stated in a vague, indefinite and ambiguous manner.
- 2 The various phrases and words used in the chapter like “public order”, “minorities”, “reasonable restriction”, “public interest” and so on are not clearly defined.
- 3 The language used to describe them is very complicated and **beyond the comprehension of the common man.**
- 4 It is alleged that the Constitution was **made by the lawyers for the lawyers.** Sir Ivor Jennings called the Constitution of India a “Paradise for Lawyers”.

CRITICISM OF FUNDAMENTAL RIGHTS

POINT NO. 4

NO PERMANENCY



- 1 They are **not sacrosanct or immutable** as the Parliament can curtail or abolish them, as for example, the abolition of the fundamental right to property in 1978.
- 2 Hence, they can **become a play tool in the hands of politicians** having majority support in the Parliament.
- 3 The **judicially innovated "Doctrine of Basic Structure"** is the **only limitation** on the authority of Parliament to curtail or abolish the fundamental right.

CRITICISM OF FUNDAMENTAL RIGHTS

SUSPENSION DURING EMERGENCY

POINT NO. 5



- 1 The suspension of their enforcement during the operation of National Emergency (except Articles 20 and 21) is another blot on the efficacy of these rights.
- 2 This provision cuts at the roots of democratic system in the country by placing the rights of the millions of innocent people in continuous jeopardy.
- 3 According to the critics, the Fundamental Rights should be enjoyable in all situations_Emergency or no Emergency.

CRITICISM OF FUNDAMENTAL RIGHTS

POINT NO. 6

EXPENSIVE REMEDY



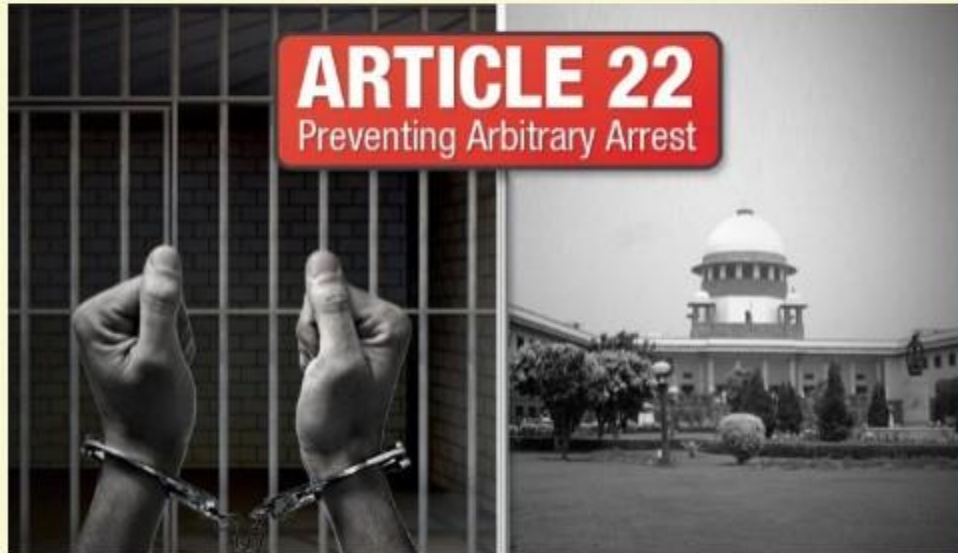
- 1 The judiciary has been made responsible for defending and protecting these rights against the interference of the legislatures and executives.
- 2 However, the judicial process is too expensive and hinders the common man from getting his rights enforced through the courts.
- 3 Hence, the critics say that the rights benefit mainly the rich section of the Indian Society.

CRITICISM OF FUNDAMENTAL RIGHTS

POINT NO. 7

PREVENTIVE DETENTION

- 1 The critics assert that the provision for the Preventive Detention (Article 22) takes away the spirit and substance of the chapter on Fundamental Rights.

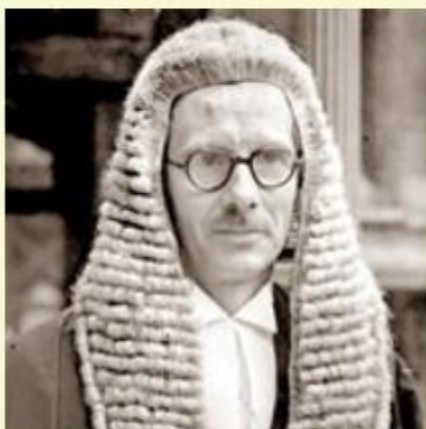


- 2 It confers arbitrary powers on the State and negates individual liberty.
- 3 It justifies the criticism that the Constitution of India deals more with the rights of State against the individual than with the rights of the individual against the State.
- 4 Notably, no Democratic country in the world has made preventive detention as an integral part of their Constitution as has been made in India

CRITICISM OF FUNDAMENTAL RIGHTS

POINT NO. 8

NO CONSISTENT PHILOSOPHY



Sir Ivor Jennings

- 1 According to some critics, the chapter on Fundamental Rights is **not the product of any philosophical principle**.
- 2 Sir Ivor Jennings expressed this view when he said that the Fundamental Rights proclaimed by Indian Constitution are based on no consistent philosophy.
- 3 The critics say that this creates difficulty for the Supreme Court and the high courts in interpreting the Fundamental Rights.

SIGNIFICANCE OF FUNDAMENTAL RIGHTS

In spite of the above criticism and shortcomings the Fundamental Rights are significant in the following respects:



- 1 They constitute the bedrock of the democratic system in the country.
- 2 They provide necessary conditions for the material and moral protection of man.
- 3 They serve as a formidable bulwark of individual liberty.
- 4 They facilitate the establishment of rule of law in the country.
- 5 They protect the interests of minorities and weaker sections of society.

SIGNIFICANCE OF FUNDAMENTAL RIGHTS



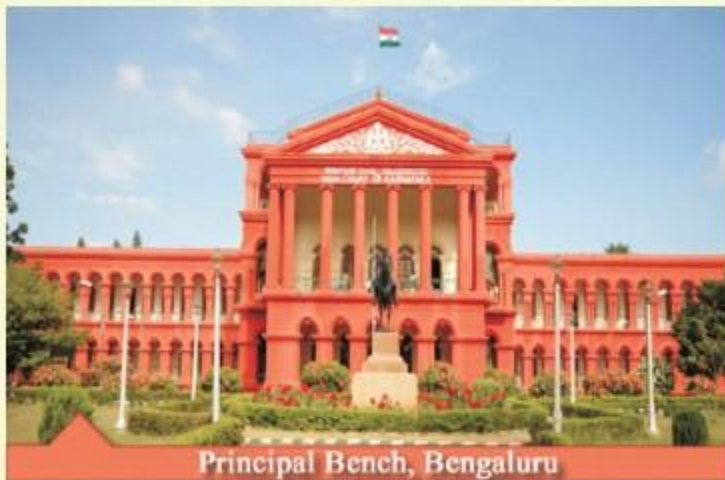
- 6 They strengthen the secular fabric of the Indian State.
- 7 They check the absoluteness of the authority of the Government.
- 8 They lay down the foundation stone of social equality and social justice.
- 9 They ensure the dignity and respect of individuals.
- 10 They facilitate the participation of people in the political and administrative process.

RIGHT OUTSIDE PART III

- 1** Besides the Fundamental Rights included in Part III, there are certain other rights contained in other parts of the Constitution. These rights are known as **Constitutional Rights or Legal Rights or non-fundamental rights**. They are:

No tax shall be levied or collected except by authority of law	Article 265 in Part XII
No person shall be deprived of his property save by authority of law	Article 300-A in Part XII
Trade, commerce and intercourse throughout the territory of India shall be free	Article 301 in Part XIII
The elections to the Lok Sabha and the State Legislative Assembly shall be on the basis of adult suffrage	Article 326 in Part XV

RIGHT OUTSIDE PART III



- 3** Even though the above rights are also equally justiciable, they are different from the Fundamental Rights.
- 4** In case of violation of a Fundamental Right, the aggrieved person can directly move the Supreme Court for its enforcement under Article 32, which is in itself a fundamental right.
- 5** But, in case of violation of the above rights, the aggrieved person cannot avail this Constitutional remedy. He can move the High Court by an ordinary suit or under Article 226 (writ jurisdiction of High Court).

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